

conferring standing on a potential plaintiff. Compare *Tennessee Electric Power Co. v. TVA*, 306 U. S. 118 (1939), and *Alabama Power Co. v. Ickes*, 302 U. S. 464 (1938), with *Barlow v. Collins*, 397 U. S. 159 (1970), and *Association of Data Processing Service Organizations v. Camp*, 397 U. S. 150 (1970). But as we pointed out only last Term, "broadening the categories of injury that may be alleged in support of standing is a different matter from abandoning the requirement that the party seeking review must himself have suffered an injury." *Sierra Club v. Morton*, 405 U. S. 727, 738 (1972). Although the law of standing has been greatly changed in the last 10 years, we have steadfastly adhered to the requirement that, at least in the absence of a statute expressly conferring standing,³ federal plaintiffs must allege some threatened or actual injury resulting from the putatively illegal action before a federal court may assume jurisdiction.⁴ See, e. g., *Moose Lodge No. 107 v. Irvis*, 407 U. S. 163, 166-167 (1972); *Flast v. Cohen*, 392 U. S. 83, 101 (1968); *Baker v. Carr*, 369 U. S. 186, 204 (1962). Cf. *Laird v. Tatum*, 408 U. S. 1, 13 (1972).

Applying this test to the facts of this case, we hold that, in the unique context of a challenge to a criminal statute, appellant has failed to allege a sufficient nexus

³ It is, of course, true that "Congress may not confer jurisdiction on Art. III federal courts to render advisory opinions," *Sierra Club v. Morton*, 405 U. S. 727, 732 n. 3 (1972). But Congress may enact statutes creating legal rights, the invasion of which creates standing, even though no injury would exist without the statute. See, e. g., *Trafficante v. Metropolitan Life Ins. Co.*, 409 U. S. 205, 212 (1972) (WHITE, J., concurring); *Hardin v. Kentucky Utilities Co.*, 390 U. S. 1, 6 (1968).

⁴ One of the leading commentators on standing has written, "Even though the past law of standing is so cluttered and confused that almost every proposition has some exception, the federal courts have consistently adhered to one major proposition without exception: One who has no interest of his own at stake always lacks standing." K. Davis, *Administrative Law Text* 428-429 (3d ed. 1972).